



File No.: EXP202311138

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 16, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202311138

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A., B.B.B., C.C.C., D.D.D., E.E.E., and F.F.F. (hereinafter, the complainants) filed a complaint with the Spanish Agency for Data Protection on July 4, 2023. The complaint is directed against CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF with NIF G79514378 (hereinafter, the respondent).

In said writings, the complainants stated that, on May 12, 2023, representatives of the respondent sent an email to all personnel of the Health Area of Ferrol of the Galician Health Service (Sergas). They claim that this email included the global counting report for the Personnel Boards in the union elections held in May 2023, where the identifying data (name, surname, and ID number) of those who acted as table monitors, as well as the elected representatives, among whom are the complainants, were shown, without prior consent from them.

For evidentiary purposes, they provided a copy of the email sent and the attached documentation, consisting of the global counting report. In this report, the existence of certain personal data without anonymization is verified:

- Name, surname, ID number, and sex of the elected representatives, as well as the union, coalition, or group to which they belong.
- Name, surname, ID number of the individuals who were part of the coordinating electoral table, as well as their position in that table (monitor, president, or secretary).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 11, 2023, as stated in the acknowledgment of receipt in the file.

On September 7, 2023, a response letter was received by this Agency from the respondent. The information received focused mainly on the measures and protocols implemented in response to the request from this authority.

This letter begins with recommendations from the Data Protection Officer of the respondent, advising the use of corporate tools and emails to ensure data security in electronic communications, especially in the context of union electoral processes. The importance of encrypting information to maintain its confidentiality and integrity is highlighted, as well as the use of the blind copy option in emails to protect the email addresses of recipients.

Furthermore, it warns about the need to avoid the transfer of personal data to third parties without legal justification.

Regarding tools for mass email sending, the respondent claims to have an affiliate management application and a specific platform for these mailings. These tools include various measures, among which is the inclusion of a link in the emails for recipients to unsubscribe from future mailings. Special

attention is given to attaching files to a server and sharing the link from it, avoiding direct attachments in the emails, thus facilitating control and security of the information intended to be shared.

It is also mentioned that investigations were conducted to determine the extent and authorship of the facts related to the complaint. In this regard, the need to increase training and awareness of staff in personal data protection is emphasized, with special attention to the delegates, who, in their opinion, may have made the mistake of sharing personal information without legal basis. In this respect, it is indicated that the cause of the incident that led to the complaint seems to be an improper handling of the personal data of these delegates, who did not follow the guidelines set by the respondent. In relation to this fact, it is suggested that the information published on the intranet of the

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Administration related to a previous record of union elections may have led to error.

Regarding the measures adopted to prevent similar incidents, it is indicated that several of them have been implemented, such as raising awareness and understanding of data protection protocols or the designation of responsible individuals in each provincial union in order to address inquiries or issues raised regarding data protection.

Finally, reference is made to the particularities that trade union organizations possess, especially concerning the role that union delegates have in workplaces, where the implementation of security measures, they assert, may prove more complicated. Despite these difficulties, the responding party shows its commitment to the supervision and compliance with data protection regulations.

In conclusion, the responding party requests that, based on the information and documentation provided, the present case be archived.

THIRD: On October 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached under Article 5.1 f) GDPR

According to paragraph 1.f) of Article 5 GDPR, data must be "processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

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In the same way, Recital 39 of the GDPR states that: "Personal data must be processed in a manner that ensures appropriate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing."

The principle of confidentiality, according to the aforementioned Article 5.1 f) of the GDPR, requires the protection of personal data against unauthorized access, use, and disclosure. This principle is essential to ensure the security of personal data, constituting a key pillar in this matter. Conversely, the violation of this principle can have unintended consequences, reflecting its importance within the regulatory framework of data protection.

In the present case, the fact reported by the complainants regarding the sending of an email with the global scrutiny record, which included names, surnames, ID numbers, and data related to union membership of the elected representatives and the individuals who were part of the electoral table, constitutes a presumed violation of the aforementioned principle of confidentiality.

In this regard, it is appropriate to point out Article 4 of the GDPR, which defines personal data as “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

There is no doubt that the data corresponding to the name, surnames, and ID number, both of the elected representatives and of the individuals who were part of the table, constitutes information that allows for the direct identification of those individuals, and therefore must be considered personal data in the terms indicated by that article.

Particular attention should be paid to the data related to the union organization corresponding to the representatives, which also appears in the record subject to the present complaint. In this regard, Article 9 of the GDPR concerning special categories of personal data establishes that “The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation shall be prohibited.”

From the reading of this article, the GDPR derives a reinforced protection for certain special categories of personal data considered particularly sensitive, among which are the data regarding a person's trade union membership. Such data require greater guarantees, among other reasons, due to their potential to be used in a discriminatory or harmful manner, which is why, as a general rule, a higher level of requirement is needed than for other personal data.

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In the case at hand, the joint disclosure of identification data alongside union affiliation data exposes individuals to potential harms that justify this special protection, such as discrimination or unfair treatment based on their membership in a particular union organization. Considering these circumstances, in the event of a violation of this principle, the severity is greater, as it involves significant risks to the rights and freedoms of the affected individuals.

On the other hand, Article 4 of the GDPR defines the “data controller” as “the natural or legal person, authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.”

In this regard, it is important to highlight that the responsibility for the disclosure of the data in question lies with the union organization, in its capacity as data controller, and not with the union delegates who sent the email containing such data, as it is the organization that has determined the purposes and means of the processing.

This assertion is supported by the jurisprudence established by the Constitutional Court (among others, rulings STC 61/1989 and STC 208/1993), according to which union delegates are considered internal organizational instances of the union within the company. By virtue of this doctrine, union

delegates not only perform representative functions of the union in the company, such as collective bargaining or the resolution of collective conflicts, but also transfer to the union the legal responsibility generated by their activity.

For the reasons stated, and without prejudice to what may result throughout this procedure, the exposure of personal data of the parties being claimed implies a presumed violation of the principle of confidentiality of personal data recognized in Article 5.1 f) of the GDPR.

III

Typification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

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In this regard, the LOPDGDD, in its article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in article 5 of Regulation (EU) 2016/679. (...)"

IV

Sanction for the infringement of article 5.1.f) of the GDPR

According to article 83.2 of the GDPR, "Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in article 58, paragraph 2, have previously been ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

- j) adherence to codes of conduct under article 40 or to certification mechanisms approved under article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

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Taking into account these provisions, in the present case it is considered appropriate to adjust the sanction to be imposed as follows:

Possible aggravating factor provided for in paragraph g) of article 83.2 of the GDPR:

g) the categories of personal data affected by the infringement;

The inclusion of the aforementioned aggravating factor is legally based on the nature of the data that was exposed in this case, among which were union data, considered as a special category of personal data in the terms established by article 9 of the GDPR. The exposure of data of this nature intensifies the severity of the infringement, due to the greater vulnerability and the associated risks of possible improper or inadequate processing.

No mitigating circumstances are observed.

Based on the aforementioned circumstances, in accordance with the provisions of article 83.5 of the GDPR, and without prejudice to what results from the instruction of this procedure, it is considered appropriate to set a possible sanction of a fine in the amount of €3,000 (THREE THOUSAND EUROS).

V

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct under article 40 or to an approved certification mechanism under article 42 may serve as a factor."

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to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the data controller or the data processor and having access to personal data

may only process such data in accordance with the instructions of the data controller, unless required to do so by Union law or the laws of the Member States.”

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the data controller and the data processor to apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the likelihood and severity of risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, determining those technical and organizational measures that are appropriate considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, and the verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures. In any case, when assessing the adequacy of the level of security, particular attention must be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

For its part, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial harm.”

In this case, the facts subject to the various claims reveal an inadequacy of the technical and organizational measures adopted to ensure an adequate level of security relative to the risk. While the responding party has demonstrated the implementation of certain measures, the incident that occurred shows that those measures have proven to be ineffective, which indicates a

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inadequacy between the implementation of data security policies and their practical effectiveness.

Specifically, from the documentation available at the time of drafting this agreement, it is evident that the entity has not implemented effective measures to ensure that the individuals under its responsibility who have access to personal data process such data in accordance with the instructions of the data controller, as expressly provided in section four of Article 32. This arises from the very statement of the responding party indicating that the cause of the incident that led to the complaints was due to inadequate handling of the personal data of the union representatives, who did not follow the guidelines set by the responding party.

This legal provision is a consequence of the principle of proactive responsibility and ensures adequate coherence between the implementation of the measures adopted by the data controller and their effectiveness in the processing carried out by the individuals under its responsibility in any organization. In this way, unauthorized access or inadequate processing of personal data is avoided, guaranteeing the protection and confidentiality of the information.

Regarding effective measures to ensure that personal data is processed only in accordance with the instructions of the data controller, this will depend on the nature and structure of the organization; however, by way of mere example, the following can be mentioned:

- Regular and specific training on data protection and GDPR for all personnel in the organization,

including union representatives. This type of training should include clear instructions on the processing of personal data within the organization, the importance of following these instructions, and the consequences of failing to do so. In fact, regarding this issue, the responding party has expressly highlighted the need to increase training and awareness among staff on personal data protection, especially aimed at the representatives.

- Access control: Through the implementation of control systems that limit access to personal data only to those personnel who need to access such data to perform their functions. This implies a proper delineation of the functions of the personnel, including those of the representatives themselves, determining whether or not they process personal data.

- Regular audits and supervision: Conducting periodic audits also ensures compliance with the instructions adopted by the data controller or the processor. This result should also be accompanied by warnings or recommendations to all personnel to avoid possible deviations from the indicated instructions.

- Incident responses. For this purpose, it is appropriate to develop and maintain an action plan to respond to potential incidents that may arise. This helps to prevent, in the event of non-compliance, the same issue from occurring again and raises awareness of the importance of following the aforementioned instructions by the personnel.

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It must be taken into account that the use of the aforementioned measures or others deemed appropriate by the responsible party will be effective only when they fulfill the objective of ensuring what is indicated in section four of Article 32, that is, to guarantee that any person acting under the authority of the responsible party or the processor can process the personal data to which they have access following the instructions of the responsible party. If, on the contrary, despite their adoption, they have not proven effective, such measures are inadequate and, therefore, the obligation required by the article has been breached, as is the case here.

In this instance, moreover, the failure to adopt adequate measures is aggravated considering the nature of the personal data processed by the responding party, since trade unions regularly process special categories of data as provided in Article 9 of the GDPR, such as, for example, union membership. This requires a higher level of protection and caution, which includes the implementation of advanced technical and organizational measures to ensure their confidentiality and integrity. Additionally, it should be noted that entities of this nature typically handle a large amount of personal data, not only of their members but also of other individuals involved in various union activities. In this regard, the management of large volumes of data increases the likelihood of a data security incident occurring, as just one incident can affect a considerable number of individuals. This special characteristic demands that the instructions provided by the responsible party or the data processor be followed with greater rigor, and consequently, the measures adopted to ensure compliance must be adequate to this requirement.

In conclusion, there is a presumed absence of adequate measures to ensure that the organization's personnel, including its union delegates, comply with the instructions adopted by the responsible party or the data processor within that organization. The effective implementation of such measures creates a security environment that helps prevent any incidents that may occur. The absence of these measures, on the contrary, implies a presumed breach of the aforementioned Article 32, as is the case here.

VI

Classification and Qualification of the Infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

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a) the obligations of the data controller and the data processor in accordance with Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates: "In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year statute of limitations: those that involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VII

Possible sanction for the infringement of Article 32 of the GDPR

In the terms indicated by the aforementioned Article 83.4 of the GDPR, the infringement of Article 32 will be sanctioned "with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount."

No aggravating or mitigating circumstances are noted.

Taking into account the general conditions for the imposition of administrative fines established by the aforementioned Article 83.2 of the GDPR, considering the circumstances of the present case and without prejudice to the outcome of the instruction of this procedure, a possible sanction of a fine in the amount of 1,000 € (ONE THOUSAND EUROS) is proposed.

VIII

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In this case, the data controller may be required to notify this authority within a period of three months regarding the adoption of the following measures:

- Adopt the appropriate organizational and technical measures to prevent communication by any means containing personal data not authorized by members of the organization, including union representatives. Such measures may consist of specific and detailed information aimed at such personnel regarding how to carry out the anonymization or encryption of data prior to the transmission of information containing personal data through any means.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO INITIATE SANCTIONING PROCEDURE against CENTRAL SINDICAL INDEPENDIENTE

Y DE FUNCIONARIOS CSI-CSIF, with NIF G79514378, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to the outcome of the instruction:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 3,000.00 euros
- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of 1,000.00 euros

This results in a total amount for the alleged commission of the infringements of 4,000 euros (FOUR THOUSAND EUROS)

FIFTH: TO NOTIFY this agreement to CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF, with NIF G79514378, granting a hearing period of ten working days for them to submit allegations and present the

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evidence that it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €3,200.00, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €3,200.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment is made within the period granted to formulate allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €2,400.00.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

Furthermore, in order to prevent further infringements of the same nature, the acknowledgment of responsibility and the consequent application of the mentioned reduction will imply the acceptance, where appropriate, of the measures to be adopted as proposed and indicated by this entity in the present agreement.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated

above (€3,200.00 or €2,400.00), you must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

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The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On January 20, 2024, the respondent has proceeded to pay the sanction in the amount of €2,400, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

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Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202311138, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF to notify the Agency within 3 months from the date this resolution becomes firm and enforceable, regarding the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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